

HEADNOTE

“1. According to Art. 51 para. 2 UPCA, all chambers of the Court of First Instance shall, to the extent that this appears appropriate, provide interpretation at the request of a party in order to assist the party at the oral hearing. This general principle is specified in more detail in R. 109 RoP.

2. The purpose of simultaneous interpretation is to enable the parties who do not have sufficient command of the language of proceedings to participate actively in the oral hearing. In this regard, interpretation may take place both into and out of the language of proceedings (cf. R. 109.1 RoP).

3. However, according to Art. 51 para. 2 UPCA, interpretation is only provided to the extent that it appears appropriate to assist a party at the oral hearing. Otherwise, the requirement to conduct proceedings in the language of proceedings remains. If individual party representatives have command of the language of proceedings, there is neither reason nor occasion to permit them to conduct the hearing in a language other than the language of proceedings with the use of simultaneous interpretation.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Procedural order

PATENT
EP 2 697 391 B1

Method and product for localised or spatial detection of nucleic acid in a tissue sample

KEYWORDS

Simultaneous interpretation

Change of procedural language

Article 51 Other language arrangements

SUMMARY

The Local Division in Düsseldorf issued a procedural order. The patent at issue relates to a method and product for localised or spatial detection of nucleic acid in a tissue sample. According to the headnotes of the decision, the UPC must provide interpretation at the request of a party during oral hearings whenever doing so would appropriately assist that party in participating. Simultaneous interpretation serves to enable parties lacking sufficient command of the language of proceedings to participate actively, and can be provided both into and out of the official language of proceedings. However, interpretation is only required to the extent it is necessary to assist a party, meaning that when individual representatives have adequate command of the language of proceedings, there is no basis to permit them to conduct the hearing in another language through simultaneous interpretation.